

Vakeel Khan v. State of U.P.

Allahabad High Court · Division Bench · 10 February 2020 · Writ-C No. 4761 of 2020 · WRIT - C No. 4761 of 2020 · **Writ disposed; petitioner directed to the Clause 8.14 authority for time-bound consideration.**

HEADNOTE

A writ over electricity charges of about Rs. 3 lakhs was disposed of on the licensee's plea that Clause 8.14 of the U.P. Electricity Supply Code, 2005 afforded an efficacious remedy. The petitioner was directed to approach the competent authority within ten days; that authority was to consider and dispose of the matter within three further weeks. The demand was not examined on merits.

FACTUAL SUMMARY

Vakeel Khan petitioned the Allahabad High Court over a dispute on electricity charges of about Rs. 3 lakhs, impleading the State of Uttar Pradesh and two other respondents appearing as the distribution licensee. Licensee's counsel submitted that an efficacious remedy lay before the competent authority under Clause 8.14 of the U.P. Electricity Supply Code, 2005. The Division Bench heard the petitioner, the licensee and the Standing Counsel and disposed of the writ on that alternative-remedy footing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.14

alternative remedy for electricity-charges dispute

HOLDING

Where a writ concerns a dispute over electricity charges and the licensee points to Clause 8.14 of the U.P. Electricity Supply Code, 2005 as an efficacious remedy, the High Court may dispose of the petition by directing the consumer to approach the competent authority under that clause within a stipulated time, with a further direction that the authority consider and dispose of the matter within a further stipulated period, without adjudicating the charges on merits. ¶ 1

PRINCIPLE TAGS

efficacious-alternative-remedy Writ declined on the footing that Clause 8.14 of the U.P. Electricity Supply Code, 2005 afforded an efficacious remedy for the electricity-charges dispute; petitioner sent to that authority with a time-bound consideration direction. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY-CHARGES DISPUTE OF ABOUT RS. 3 LAKHS

The Court did not examine whether the demand was lawful; it only remitted the petitioner to Clause 8.14. ¶ 1